



File No: EXP202302932

RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the claimant), after a series of problems with a product contracted by telephone with TELEFÓNICA DE ESPAÑA S.A.U. (hereinafter, the respondent), contacted the customer service of WhatsApp Movistar, and during the course of her conversation, requested several times that they provide her with a copy of the recording of the contracting of that product, without her request receiving the legally established response.

The claimant provides a transcript of the conversation held via WhatsApp Movistar.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent states, in summary, that "(...) No request regarding the exercise of the right of access has been received, attaching a copy of the identification document, through the channels that Telefónica has specifically enabled and published for their management.

(...) it is important to inform that no response has been given to the alleged request, since it has not been received through the channels enabled for such purposes."

It indicates that on April 3, 2023, it sent a letter to the claimant informing her that it had not received her request through the specifically enabled channels.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on April 14, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten business days it could present the allegations it deemed appropriate, without making any allegations within the established period.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation

and promote awareness among data controllers and processors about the obligations that pertain to them, as well as to address complaints submitted by an interested party and investigate the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns to this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, it was forwarded to the respondent for analysis, to respond to this Agency within one month, and to prove that it had provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this transfer did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on April 14, 2023, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. This admission agreement determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

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“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article. In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be purified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the complainant are duly restored.

III

Rights of individuals regarding the protection of personal data

The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such a request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the interested party regarding their request must be expressed in a

concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

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IV

Right of access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed and, in such a case, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the interested party may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so.

On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered, which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization.

V

Conclusion

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed and, in such a case, the right of access to the personal data." Before addressing the substance of the matter, it should be noted that, according to the provisions of data protection regulations, voice is also considered personal data. Therefore, the complaining party would have the right to be provided with the voice recordings under the protection of data protection regulations.

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According to the European Data Protection Board, it must be weighed whether the information concerning the access requester and also third parties should be provided. The data controller must be able to demonstrate that the rights or freedoms of third parties would be adversely affected in the specific situation. The application of Article 15, paragraph 4, should not result in the total denial of the request of the data subject; it would only result in excluding or rendering unreadable those parts that may have negative effects on the rights and freedoms of others.

Thus, the guidelines of the aforementioned Committee indicate that "...the right to the protection of personal data is not an absolute right. Therefore, the exercise of the right of access must be balanced with other fundamental rights in accordance with the principle of proportionality. When the assessment of Article 15, paragraph 4, of the GDPR demonstrates that compliance with the request has negative effects on the rights and freedoms of other participants (phase 1), the interests of all participants must be weighed taking into account the specific circumstances of the case and, in particular, the likelihood and severity of the risks present in the communication of the data..."

Consequently, the right of access to the recording of their voice requested by the complaining party is protected by the current data protection regulations.

In the case analyzed here, it is established that the complaining party exercised their right of access to the voice recording of the contract formalized with the complained party and that, after the period established according to the aforementioned regulations, their request did not receive the legally required response; the complained party has not attended to the request of the complaining party nor has it demonstrated this before this Agency.

The complained party states that they did not respond to the right of access because the exercise was not submitted through the established channel.

In this regard, it should be noted that, in these cases, where the request is not submitted through the provided channel or to the corresponding office, the receiving body must forward the request received to the assigned Data Protection Officer or the department responsible for managing such requests. Furthermore, although it is appropriate for such a request to be addressed to the address declared by the controller for the purpose of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 or to the central office, it is considered that the receipt of the request by any department or branch of the controller is a valid destination for it, in accordance with Article 12 of the LODPGDD, which states:

"The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible to the affected party. The exercise of the right may not be denied solely on the grounds that the affected party has opted for another means."

The aforementioned regulations do not allow the request to be overlooked as if it had not been made, leaving it without the response that the controllers are obliged to issue, even in the event that there are no data in the files or even in those cases where it does not meet the stipulated requirements, in which case the

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The recipient of said request is likewise obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be sent to the claimant informing them of the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the claim that originated this procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Ms. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge TELEFÓNICA DE ESPAÑA S.A.U. with NIF A82018474, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the

same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to TELEFÓNICA DE ESPAÑA S.A.U.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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